

		Nabal's prosecution of the first cause of action for fraud is STAYED pending posting of the bond and/or dismissal. Clerk to give notice.
4	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant Kisco Senior Living, LLC (Kisco)'s Demurrer to Plaintiff's First Amended Complaint is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put Kisco on notice of the claims against it. Any additional factual detail may be obtained through discovery. <u>First cause of action for Elder Abuse</u> Plaintiff alleges sufficient facts to support a cause of action for Elder Abuse. (FAC ¶¶ 14-16, 16-73; see <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32.) Plaintiff also alleges sufficient facts to allege a custodial relationship (FAC ¶¶ 1, 3-4, 6, 13) and corporate ratification (FAC ¶¶ 66, 71.) <u>Second cause of action for negligence</u> Plaintiff alleges sufficient facts to support her negligence cause of action as well as a continuing course of neglect. (FAC ¶¶ 41, 42, 62, 95-97; see <i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197-1200.) Motion to Strike First Amended Complaint Defendants KRC Santa Margarita, LLC and Kisco Senior Living, LLC's Motion to Strike is DENIED. As Plaintiff's cause of action for elder abuse under the Elder Abuse Act was sufficiently alleged for purposes of demurrer, Plaintiff has also sufficiently alleged facts to support her request for punitive damages and attorney fees. Defendants are ORDERED to file an answer within 5 days. Clerk to give notice.
5	Albanese vs. Navient Corporation	Demurrer to First Amended Complaint Off calendar – withdrawn at demurring party's request.